



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 10, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14940
(SIXTH REVISION)

EXPIRATION DATE: 2028-05-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Crown Cork & Seal USA, Inc.
Philadelphia, PA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale, and use of non-DOT specification cans conforming with all regulations applicable to a DOT specification 2P or 2Q inner metal receptacle except for wall thickness, for the transportation in commerce of certain Division 2.1 and 2.2 aerosols. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a), party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a)(3) and §§ 178.33 and 178.33a, in that non-DOT specification containers are not authorized, except as provided herein.

Tracking Number: 2024054551

5. BASIS: This special permit is based on the application of Crown Cork & Seal USA, Inc. dated May 8, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Aerosols, <i>flammable (each not exceeding 1 liter capacity)</i>	2.1	UN1950	N/A
Aerosols, <i>non-flammable (each not exceeding 1 liter capacity)</i>	2.2	UN1950	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The prescribed packagings are non-DOT specification inside containers that have a maximum height of 8.25 inches (209.55 millimeters) and conform to all regulations applicable to the DOT-2P or 2Q specifications, with the exception of the following:

DOT-2P:

§ 178.33-2 *Type and size.*

- (a) The maximum inside diameter shall not exceed 65 millimeters (2.56 inches).

§ 178.33-7 *Wall thickness.*

- (a) The minimum wall thickness for any container shall be 0.0065 inch.

§ 178.33-9 *Marking.*

- (a) * * *

- (1) In lieu of “DOT-2P”, the special permit number and the minimum wall thickness must be displayed using the following format:

“DOT-SP 14940”
“0.0065 inch”

DOT-2Q:

§178.33a-2 *Type and size.*

- (a) The maximum inside diameter shall not exceed 65 millimeters (2.56 inches).

§178.33a-7 *Type and size.*

- (a) The minimum wall thickness for any container shall be 0.0070 inch.

§ 178.33a-9 *Marking.*

- (a) * * *

- (1) In lieu of “DOT-2Q”, the special permit number and the minimum wall thickness must be displayed using the following format:

“DOT-SP 14940”
“0.0070 inch”

8. SPECIAL PROVISIONS:

a. Each new container design must be subjected to drop and body wall abuse testing. The sample size for each test must be no less than 25 containers. Containers subjected to drop testing must withstand, without any evidence of leakage, drops from at least a 1 meter height. Containers subjected to body wall abuse testing must absorb, without evidence of leakage, a minimum energy intensity of 70 kilojoules per square meter using a striker that is in accordance with the application on file with the Office of Hazardous Materials Safety (OHMS).

b. Burst test data from testing performed in accordance with § 178.33-8 and § 178.33a-8 must be submitted to the OHMS on the first 20 lots of containers.

c. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

- d. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
 - e. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - f. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.
 - g. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.
 - h. Each container must be packed in a strong outside packaging as prescribed in § 173.301(a)(9).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, rail freight, and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BB